

Employee Non-Disclosure and Confidentiality Agreement

This Employee Non-Disclosure and Confidentiality Agreement (this "Agreement") is entered into as of the 8 day of July, 2026 (the "Effective Date") by and between **Dynamisch IT Pvt Ltd**, and Intern, an employee of the Company. The above parties may be referred to singularly as a "Party" or collectively as the "Parties".

The Company hired Employee as Company hired Employee as sanchi yehalegaonkar pursuant to the terms and conditions of the Employment Agreement executed between the Parties on the 8th day of July, 2026 (the "Employment Agreement"). In connection with the Employee's duties under the Employment Agreement, the Company may disclose to the Employee certain confidential and proprietary information unique and valuable to its ongoing business operations. In consideration of the Employee's employment by the Company and the covenants and mutual promises contained herein, the Parties agree as follows:

1. Confidential Information. The term "Confidential Information" as used in this Agreement shall mean any data, information, or knowledge disclosed by the Company to the Employee and not generally known to the public, including but not limited to:

- a. The Company's business or operational plans or activities, existing or contemplated markets, advertising initiatives, methods of operation, products, or services;
- b. The Company's client's project or its customer data;
- c. The Company's customer or supplier lists, cost of goods or services, profits and losses, budgeting, past or future sales, or financial information;
- d. The Company's schematics, designs, software source or object code, compressed or uncompressed binaries, inventions, patents or patent applications or illustrations;
- e. The Company's or its client's existing or contemplated designs, models or platforms, formulas, research, notes, or analytical data;
- f. The Company's management, board of directors, affiliates, suppliers, customers, employees, or third-party contractors;
- g. The Company's history, entity structure, accounts, or goodwill; the Company's copyrights, trademarks, trade secrets, patents, trade names, moral rights, or any other tangible or intangible rights, whether registered or unregistered;
- h. The Company's technical systems, processes, methods, algorithms, computational schemas, know-how, or trade secrets;
- i. The Company's employees, salaries, job related functions, duties or responsibilities; the Company's written, auditory or electronic communications;
- j. Any information that if disclosed, whether true or untrue, could harm the goodwill or reputation of the Company or the Company's management, board of directors, affiliates, suppliers, customers, employees, third-party contractors, methods of operation, products, or services; or
- k. Any other information of any of whatever kind and nature that the Company desires to maintain confidential.

2. Exclusions to Confidential Information. The obligation of confidentiality with respect to Confidential Information will not apply to any information:

- a. If the information is or becomes publicly known and available other than as a result of prior unauthorized disclosure by the Employee;
- b. If the information is or was received by the Employee from a third-party source which, to the best knowledge of the Employee, is or was not under a confidentiality obligation to the Company with regard to such information;
- c. If the information is disclosed by the Employee with the Company's prior written permission and approval;
- d. If the information is independently developed by the Employee prior to disclosure by the Company and without the use and benefit of any of the Company's Confidential Information; or
- e. If the Employee is legally compelled by applicable law, by any court, governmental agency, or regulatory authority or subpoena or discovery request in pending litigation, but only if, to the extent lawful, the Employee gives prompt written notice of that fact to the Company prior to disclosure so that the Company may request a protective order or other remedy, the Employee may disclose only such portion of the Confidential Information which it is legally obligated to disclose.

3. Obligation to Maintain Confidentiality. With respect to Confidential Information:

- a. The Employee agrees to retain the Confidential Information in strict confidence, to protect the security, integrity, and confidentiality of such information and to not permit unauthorized access to or unauthorized use, disclosure, publication, or dissemination of Confidential Information except in conformity with this Agreement.
- b. Confidential Information is and will remain the sole and exclusive property of the Company and will not be disclosed or revealed by the Employee, except (i) to other employees of the Company who have a need to know such information and agree to be bound by the terms of this Agreement or (ii) with the Company's express prior written consent.
- c. The Employee agrees that, in the event the Employee must download, access, process, transfer or otherwise communicate Confidential Information, the Employee will comply with all laws and regulations applicable to exports and re-exports of data and information and will not, directly or indirectly, export or re-export any Confidential Information in violation of such laws and regulations, including without limitation, those prohibiting export or re-export to restricted countries or without governmental authorization.
- d. The Employee agrees that Confidential Information are intended for civil purposes only and will not, directly or indirectly, download, access, process, transfer or otherwise communicate Confidential Information or any part thereof to military, paramilitary or civil entities, "institutes," "academies" nor any country subject to United States, United Nations or Organizations for Security and Co-Operation in Europe sanctions for any military or violent purpose, such as use in nuclear, biological or chemical weapons.
- e. Upon termination of this Agreement or at the request of the Company, the Employee will ensure that all Confidential Information and all documents, memoranda, notes and other writings or electronic records prepared by the Employee that include or reflect any Confidential Information

in the Employee's actual or constructive possession are returned to the Company within **two business days**.

- f. [The obligation not to disclose Confidential Information shall survive the termination of this Agreement, and at no time will the Employee be permitted to disclose Confidential Information, except to the extent that such Confidential Information is excluded from the obligations of confidentiality under this Agreement pursuant to Paragraph 2 above.] [The obligation not to disclose Confidential Information shall remain in effect until **Five years** following the Employee's termination of employment by the Company, except to the extent that such Confidential Information is excluded from the obligations of confidentiality under this Agreement pursuant to Paragraph 2 above.]

4. **Disclaimer.** There is no representation or warranty, express or implied, made by the Company as to the accuracy or completeness of any of its Confidential Information.

5. **Non solicitation clause:**With respect to non-solicitation act of during and later employment:

- a. During and for a period of three **(3)** years following the termination of employment with Dynamisch IT Pvt Ltd., the Employee agrees not to directly or indirectly solicit or attempt to solicit any client, customer, or business prospect of Dynamisch IT Pvt Ltd. for the purpose of providing goods or services that are similar to or competitive with the products or services offered by Dynamisch IT Pvt Ltd.
- b. This restriction applies to clients, customers, and business prospects with whom the Employee had direct contact or about whom the Employee acquired confidential information or trade secrets during the course of their employment with Dynamisch IT Pvt Ltd.
- c. The Employee further agrees not to disclose or use any confidential information or trade secrets of Dynamisch IT Pvt Ltd in connection with any solicitation or attempt to solicit clients, customers, or business prospects.
- d. This non-solicitation clause is intended to protect the legitimate business interests of Dynamisch IT and acknowledges the investment made by Dynamisch IT in building and maintaining its client base. The Employee recognizes that client poaching can cause significant harm to Dynamisch IT and its competitive position in the market.
- e. In the event that the Employee breaches this non-solicitation clause, the Employee agrees to indemnify and hold harmless Dynamisch IT from any damages, losses, or expenses incurred as a result of such breach.
- f. This non-solicitation clause shall survive the termination of employment with Dynamisch IT and remain in full force and effect for the duration of three **(3)** years thereafter.

5. **Remedies.**The Employee acknowledges that use or disclosure of any confidential and proprietary information in a manner inconsistent with this Agreement will give rise to irreparable injury for which damages would not be an adequate remedy. Accordingly, in addition to any other legal remedies which may be available at law or in equity, the Company shall be entitled to equitable or injunctive relief against the unauthorized use or disclosure of confidential and proprietary information. The Company shall be entitled to pursue any other legally permissible remedy available as a result of such breach, including but

not limited to damages, both direct and consequential. In any action brought by the Company under this Section, the Company shall be entitled to recover its attorney's fees and costs from the Employee.

6. Notices. All notices given under this Agreement must be in writing. A notice is effective upon receipt and shall be sent via one of the following methods: delivery in person, overnight courier service, certified or registered mail, postage prepaid, return receipt requested, addressed to the Party to be notified at the below address or by facsimile at the below facsimile number or in the case of either Party, to such other party, address or facsimile number as such Party may designate upon reasonable notice to the other Party.

Dynamisch IT Pvt Ltd
Shubhangi Kesarwani
Assistant Manager - HR
Office Address: B-6, Indialand Global Tech Park, Phase 1, Hinjewadi,
Pune, Maharashtra - 411057
Contact: 9356326263

Employee: sanchi yehalegaonkar

Address : nanded city asawari H 1006 pune
Contact : 8080516371

7. Termination. This Agreement will terminate on the earlier of: (a) the written agreement of the Parties to terminate this Agreement; (b) the cessation of the Employee's employment.

8. Amendment. This Agreement may be amended or modified only by a written agreement signed by both of the Parties.

9. Jurisdiction. This Agreement will be governed by and construed in accordance with the laws of the State of Maharashtra, without regard to the principles of conflict of laws. Any dispute arising from this Agreement shall be resolved in the Pune (State – Maharashtra, Country – India) jurisdiction.

10. No Offer or Sale. Nothing in this Agreement will be deemed a sale or offer for sale of Confidential Information nor obligate the Company to grant the Employee a license or any rights, by statute, common law theory of estoppel or otherwise, to Confidential Information.

11. Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior or contemporaneous negotiations, discussions or agreements, whether written or oral, regarding the subject matter hereof.

12. Miscellaneous. No joint venture, partnership or agency relationship exists between the Employee, the Company or any third-party as a result of this Agreement. This Agreement will inure to the benefit of and be binding on the respective successors and permitted assigns of the parties. Neither Party may assign its rights or delegate its duties under this Agreement without the other Party's prior written consent. In the

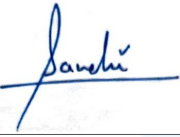
event that any provision of this Agreement is held to be invalid, illegal or unenforceable in whole or in part, the remaining provisions shall not be affected and shall continue to be valid, legal and enforceable as though the invalid, illegal or unenforceable parts had not been included in this Agreement. Neither Party will be charged with any waiver of any provision of this Agreement, unless such waiver is evidenced by a writing signed by the Party and any such waiver will be limited to the terms of such writing.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first written above.

EMPLOYEE

Name : sanchi yehalegaonkar

Title : Intern

By: _____


COMPANY

Dynamisch IT Pvt. Ltd.

By: _____

Name: Shubhangi Kesarwani

Title: Assistant Manager - HR